



Appeal Decision

Site visit made on 27 August 2026

by **Les Greenwood MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 10 September 2026

Appeal Ref: 6012026

297 Frankby Road, Frankby, Wirral CH48 1PE

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by James Taylor for Aughton Estates Ltd against the decision of Wirral Metropolitan Borough Council.
 - The application Ref is APPH/26/00073.
 - The development proposed is the construction of a first floor side extension.
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Decision

1. The appeal is dismissed.

Preliminary matters

2. The proposal is described as a first floor side extension. I saw at my site visit that this has already been built, so that the proposal is retrospective. The appellant advises that the ground floor extension underneath the appeal extension was also built recently, under permitted development rights¹, as confirmed in principle by a Lawful Development Certificate issued by the Council. The Council states that the ground floor and first floor side extensions appear to have been built concurrently, but I have seen no evidence on this point. This appeal decision deals with the first floor extension only.
3. I also noted on my site visit that an additional ground floor extension and roof terrace appears to have been added at the back of the appeal extension. This is not shown on the submitted plans. To be clear, this decision relates to the submitted proposal and not to the as built version.
4. Two significant new documents have been published since the Council's refusal of the appeal application: (1) a revised version of the National Planning Policy Framework (the Framework); and (2) the Council's Supplementary Planning Document *Householder Extensions* (SPD). The SPD is based on policies in the Wirral Local Plan (WLP) and supersedes the Council's previous Supplementary Planning Guidance Note 11, also entitled *Householder Extensions*. Both the appellant and the Council have had a chance to comment on the implications of these new documents.

¹ Town and Country Planning (General Permitted Development) (England) Order 2015, Sch 2 Part 1

Main Issues

5. The main issues are:

- i) whether the proposal constitutes inappropriate development in the Green Belt;
- ii) its effect on the openness of the Green Belt; and
- iii) if it is inappropriate development, whether the harm by reason of inappropriateness and any other harm would be clearly outweighed by other considerations, amounting to the very special circumstances necessary to justify development.

Reasons

Whether inappropriate development in the Green Belt

6. 297 Frankby Road is a detached, 2 storey, 1980s house on a large plot within an area of sporadic development on the fringe of the village of Frankby. The appeal proposal has been added to the west side of the house. A 2 storey extension has also been built onto the east side recently, with a separate planning permission and in place of a previously existing detached garage.
7. The Framework confirms that the objective of Green Belt policy is to prevent urban sprawl by keeping land permanently open. Framework policy GB6 advises that inappropriate development is, by definition, harmful to the Green Belt and should not be approved except in very special circumstances.
8. Framework policy GB7 sets out the categories of development which are not inappropriate in the Green Belt, explaining that construction of new buildings should be regarded as inappropriate with only specific listed exceptions. One of these exceptions is for extensions and alterations that would not result in a disproportionate increase in size compared to the original building. Wirral Local Plan (WLP) policy WS1 confirms that national policy will be applied to Green Belt development proposals, so national and local Green Belt policies fully align.
9. Although the Framework does not provide guidance on the scale of extensions that would be disproportionate, the SPD says that increases of more than 50% of the floorspace of the original dwelling, in combination with all previous additions, will be considered disproportionate. In this case the original dwelling is reasonably considered to be the house and the detached garage. On this basis the Council calculates that the overall floorspace increase is about 73%. The appellant does not dispute that figure.
10. This is a significant increase over the SPD's guideline figure, strongly suggesting that the scale of extensions here has become disproportionate. The nature of the extensions in this case, spreading 2 storey development across the vast majority of the width of this wide plot reinforces the impression that the house has grown disproportionately. The overall increase in the scale of the house is substantial.
11. I therefore conclude that the proposal is inappropriate development in the Green Belt. Framework policy GB6 says that such development is harmful to the Green Belt, by definition, and that substantial weight should be given to that harm.

Openness

12. The effect on openness can be assessed in terms of both physical and visual impacts. As above, the proposal and other extensions have made the house markedly larger. This physically reduces openness at the edge of the village, consolidating the built form of this outlying area.
13. In visual terms the house, although set back from the street behind a hedge and a parking area, is a prominent feature in the street scene. The appellant argues that there would be no increase in the building's footprint so no additional encroachment into the Green Belt. The approved plans for the single storey side extension, however, show a low profile roof with a very limited visual impact. The addition of the appeal extension makes this structure much taller and more prominent, detracting from the visual openness of its rural setting.
14. I therefore find that significant harm is caused to the openness of the Green Belt. This also weighs against the proposal.

Whether very special circumstances exist

15. Framework policy GB6 states that the very special circumstances needed to justify inappropriate development in the Green Belt will not exist unless the potential harm to the Green Belt by reason of inappropriateness and any other harm resulting from the proposed development is clearly outweighed by other considerations.
16. The Council raises no design-based objection to the appeal proposal. The appellant argues that the first floor extension is appropriately subservient in form and scale, restoring a degree of symmetry to the house's frontage. I agree to the extent that the appeal extension is reasonably designed to fit in with the house's architecture, but I consider this to be a relatively neutral factor in the overall assessment. The house has a somewhat informal character which helps it to fit into the rural area. It was not designed to be symmetrical and I see no clear design need for a first floor extension on this side. I further note that the resulting house is not of such a size that it is out of proportion to its large plot, but this is also a neutral factor.
17. I recognise that the proposal makes more effective use of the site to provide improved family accommodation. This weighs in favour of the proposal. Nevertheless, taking into account all matters raised, I find nothing to clearly outweigh the harm to the Green Belt by reason of inappropriateness and loss of openness. The very special circumstances required by Framework policy GB6 and WLP policy WS1 therefore do not exist in this case.

Conclusion

18. I find that the proposal conflicts with the development plan and the Framework. For the reasons set out above, I conclude that the appeal should not succeed.

Les Greenwood

INSPECTOR